

in aid for payment of debts is not bound to inquire into the fact whether the sale is made necessary by the existence of debts, because he has no adequate means to prosecute such an inquiry, so he who deals for personal assets is, for the same reason, absolved from all inquiry with respect to debts: and it is upon this principle altogether indifferent what dispositions may be made in the will with respect to the personal property for which he deals; for whether it be specifically given or be part of the residuary estate, it is equally available in law for the payment of debts" (b).

Thus nothing can be clearer than that an executor may go to market with his testator's assets, (even with a chattel specifically bequeathed (c),) and the purchaser will not be bound to see to the application of his purchase-money (d).

[But an executor or administrator cannot mortgage the assets to raise money for repairing or re-instating dilapidated buildings unless the testator or intestate was liable under covenants to execute the works (e).]

31. **Fraud an exception.**—But *fraud* and *collusion* will vitiate any transaction, and turn it to a mere colour (f), and therefore if fraud be proved, either expressed or implied, the parties cannot protect themselves by pleading the general rule (g). The only question is, What will amount to a case of fraud?

* **a. Sale at a nominal price.**—The sale cannot stand if the chattel be sold at a *nominal price* or a *fraudulent undervalue* (a). [*479]

(b) *Keane v. Roberts*, 4 Mad. 356.

(c) *Watts v. Kancie*, Toth. 77, 161; *Nurton v. Nurton*, Ib.; *Ewer v. Corbet*, 2 P. W. 148. As to *Humble v. Bill*, 2 Vern. 444, 1 B. P. C. 71, see *Ewer v. Corbet*, *ubi supra*; *Andrew v. Wrigley*, 4 B. C. C. 137; *M'Leod v. Drummond*, 17 Ves. 160.

(d) *Bonney v. Ridgard*, 1 Cox, 147, per Lord Kenyon.

[(e) *Ricketts v. Lewis*, 51 L. J. N. S. Ch. 837.]

(f) *Scott v. Tyler*, 2 Dick. 725, per Lord Thurlow.

(g) *Watkins v. Cheek*, 2 S. & S. 205, per Sir J. Leach; *M'Leod v. Drummond*, 17 Ves. 154, per Lord

Eldon; *Hill v. Simpson*, 7 Ves. 166, per Sir W. Grant; *Taner v. Ivie*, 2 Ves. 469, per Lord Hardwicke; *Keane v. Roberts*, 4 Mad. 357, per Sir J. Leach; *Crane v. Drake*, 2 Vern. 616; *Nugent v. Gifford*, 1 Atk. 463, per Lord Hardwicke; *Mead v. Orrery*, 3 Atk. 240, per *eundem*; *Scott v. Tyler*, 2 Dick. 725, per Lord Thurlow; *Whale v. Booth*, 4 T. R. 625, note (a), per Lord Mansfield; *Elliot v. Merryman*, Barn. 81, per Sir J. Jekyll; *Bonney v. Ridgard*, 1 Cox, 147, per Lord Kenyon; *Earl Vane v. Rigden*, 5 L. R. Ch. App. 603, &c.

(a) *Scott v. Tyler*, 2 Dick. 725, per Lord Thurlow; *Ewer v. Corbet*, 2 P.